

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 2/17/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL 2001631

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: SOPHIE CLARK

and

RESPONDENT: BARTON CLARK

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD/SPOUSAL SUPPORT;
ATTORNEY’S FEES; DISTRIBUTION OF FUNDS HELD IN TRUST

RULING

On October 23, 2025, Respondent Barton Clark (“Father”) filed a request for order (“RFO”) seeking modification in child and spousal support. Father also requests \$15,000 which was held back from the sale of the marital home, \$7,500 of which was released to his attorney’s trust account and \$7,500 of which was held in the Petitioner Sophie Clark (“Mother”) attorney’s trust account be released entirely to him. Father further requests sanctions in the amount of \$10,000 pursuant to Family Code section 271.

On February 6, 2026, the parties reached a stipulation regarding the support and the \$15,000 held back from sale of the martial home.

Father’s request for support and for release of the \$15,000 is denied as moot, since the parties have reached a stipulation. The stipulation did not address the request for sanctions.

SANCTIONS

Family Code §271(a) authorizes the trial court to award attorney's fees and costs.

Notwithstanding any other provision of this code, the court may base an award of attorney’s fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation between the parties and attorneys. An award of attorney’s fees and costs pursuant to this section is in the nature of a sanction. In making an award pursuant to this section, the court shall take into consideration all evidence concerning the parties’ incomes, assets, and liabilities. The court shall not impose a sanction pursuant to this section that imposes an unreasonable financial burden on the party against whom the sanction is imposed...

The purpose of the statute is “to promote settlement and to encourage cooperation which will reduce the cost of litigation.” (*Parker v. Harbert* (2012) 212 Cal.App.4th 1172, 1176, quoting *In re Marriage of Petropoulos* (2001) 91 Cal.App.4th 161, 177.)

The Court finds the parties were initially negotiating to modify the terms of the judgment and had reached an agreement. Mother then reversed course, and repeatedly changed counsel, delaying and re-negotiating, and eventually collapsing the agreement. Father requests sanctions in the amount of \$10,000. According to Father’s counsel, she spent 4.95 hours on the issues currently before the Court in the RFO. Another approximately 5 hours were spent in negotiations with successive counsel, and another 8.45 hours were spent on the RFO. Father’s counsel charges him a reduced hourly rate of \$425. Father also spent \$2,500 on a vocational expert.

Mother’s continual delays are precisely the kind of conduct section 271 seeks to preclude. The Court awards Father sanctions of \$8,500, payable in full in 90 days.

Counsel for Father is to prepare the formal findings and order after hearing.

The parties shall comply with Marin County Superior Court Local Rules 7.12(B) and (C). Any party requesting oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person. Absent proper notice, no oral argument will be permitted, and if no request is made, the tentative ruling shall become the order of the Court.

Appearances may be made in person or via Zoom unless otherwise ordered. Parties are responsible for ensuring adequate connectivity and availability; the Court may proceed in a party’s absence if technical issues arise. Parties requesting oral argument must appear in person or remotely by Zoom (video or telephone) in accordance with court website guidelines. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 2/17/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0001040

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: JENNIFER CHARIFA

PETITIONER: MIKI SUZUKI

and

RESPONDENT: JUNJI SUZUKI

NATURE OF PROCEEDINGS: 1) REQUEST FOR ORDER – BIFURCATION RE DATE OF SEPARATION 2) CASE PROGRESS CONFERENCE

RULING

On January 2, 2026, Petitioner Miki Suzuki (Mother) filed her Request for Order (RFO), seeking a separate trial on date of separation, and characterization of certain assets as community property (CP).

Mother requests to bifurcate the date of separation. Father agrees to bifurcate the date of separation.

Mother also seeks an order characterizing certain assets as CP. Further, Mother seeks an order for Respondent Junji Suzuki (Father) to advance \$100,000 of that CP to her. Mother asserts that she needs access to funds to repay a loan to her parents and to relocate to Japan with the parties' two daughters. Father objects to both characterizing assets in advance of trial and to advancing the funds and argues Mother has not presented any immediate need.

The request to bifurcate the date of separation is granted. A case progress conference is also set for February 17, 2026, and the Court will set trial dates and a briefing schedule then.

As for Mother's request to characterize certain property as CP, the request is denied. Characterization and division of property are trial issues.

As to the request to advance CP, the Court agrees with Father that Mother has not demonstrated a specific need for the requested \$100,000. Mother's potential move to Japan is not yet before the Court. Father also points out that liquidation of the proposed funds would result in significant costs that would impose irreparable harm to the marital estate. The request is denied without prejudice.

Counsel for Mother is to prepare the formal findings and order after hearing.

The parties shall comply with Marin County Superior Court Local Rules 7.12(B) and (C). Any party requesting oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person. Absent proper notice, no oral argument will be permitted, and if no request is made, the tentative ruling shall become the order of the Court.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 2/17/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0001967

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: ADRIENNE ADLER	
and	
RESPONDENT: JOANNA ADLER	

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – ATTORNEY’S FEES

RULING

Appearances required.

The parties shall comply with Marin County Superior Court Local Rules 7.12(B) and (C). Any party requesting oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person. Absent proper notice, no oral argument will be permitted, and if no request is made, the tentative ruling shall become the order of the Court.

Appearances may be made in person or via Zoom unless otherwise ordered. Parties are responsible for ensuring adequate connectivity and availability; the Court may proceed in a party’s absence if technical issues arise. Parties requesting oral argument must appear in person or remotely by Zoom (video or telephone) in accordance with court website guidelines. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 02/17/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0002198

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: ALBERT COLLELL

and

RESPONDENT: ADRIANA PETERSON

NATURE OF PROCEEDINGS: 1) REQUEST FOR ORDER – SPOUSAL SUPPORT

RULING

Adriana Peterson (“Wife”) filed a request for *ex parte* emergency *pendente lite* spousal support on January 13, 2026. The court found no emergency and Wife filed her Request for Order (RFO) on January 15, 2026, seeing *pendente lite* spousal support.

Although the parties have executed a marital settlement agreement (“MSA”) that calls for spousal support, it has not yet been reduced to a judgment. Albert Collell (“Husband”) acknowledges the agreed-upon support obligation in the MSA, but argues it is not yet an enforceable Judgment. Husband points to unspecified changes in his financial circumstances that make it difficult for him to pay the \$2,500 per month called for in the MSA. Husband has filed an income and expense declaration on January 5, 202 that demonstrate he earns, on average, \$16,404 per month and has monthly expenses of \$10,659. Wife is currently unemployed, receiving Social Security retirement benefits of \$1,317 per month, CalFresh public assistance in the amount of \$298 per month and is caring for her disabled sister.

Pendente lite spousal support is warranted. Wife asks for guideline support. According to the attached Xspouse calculation, guideline *pendente lite* spousal support is \$4,014 per month. The Court awards *pendente lite* support in the amount of \$4,014, effective January 13, 2026. This is a marriage of short duration, and it appears that Wife has marketable skills. Wife is advised that goal of this state is that she shall make reasonable good faith efforts to become self-supporting, and that the failure to make reasonable good faith efforts may be one of the factors considered by the court as a basis for modifying or terminating spousal support. (Fam. Code §4330; *Marriage of Gavron* (1988) 203 Cal.App.3d 705, 712.)

The Court reserves jurisdiction until April 7, 2026) to modify spousal support retroactive to January 13, 2026. If the parties submit a Stipulation or a Judgment by April 7, 2026 which contains an alternative support amount, and the Stipulation or Judgment is approved by the Court, it will replace this order retroactive to January 13, 2026.

Wife also asked the Court to enforce the judgment, which the Court interprets as a motion under Code of Civil Procedure section 664.6. The parties are referred to the Family Law Facilitator for assistance in preparing and filing a judgment packet.

The case progress conference set for April 7, 2026 will remain on calendar unless the parties file a complete judgment packet.

As authorized by California Rules of Court, Rule 5.125 the Court shall prepare the Findings and Order After Hearing.

The parties shall comply with Marin County Superior Court Local Rules 7.12(B) and (C). Any party requesting oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person. Absent proper notice, no oral argument will be permitted, and if no request is made, the tentative ruling shall become the order of the Court.

Appearances may be made in person or via Zoom unless otherwise ordered. Parties are responsible for ensuring adequate connectivity and availability; the Court may proceed in a party's absence if technical issues arise. Parties requesting oral argument must appear in person or remotely by Zoom (video or telephone) in accordance with court website guidelines. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person.

2026

Guideline Summary

Monthly Figures

Fixed Shares	Husband	Wife	Monthly Figures		Cash Flow	
Number of children	0	0	2026		Combined net spendable	12997
Percent time with NCP	0.00%	0.00%				
Filing status	MFJIN	MFJIN			Husband	
Number of exemptions	1	1	Nets (adjusted)		Payment cost/benefit	-4014
Wages and salary	16404	0	Husband	11680	Net spendable income	7667
Self employed income	0	0	Wife	1317	Federal income tax	2145
Other taxable income	0	0	Total	12997	Federal employment tax	1173
TANF CS received	0	298	Support		State income tax	803
Other nontaxable income	0	1317	Addons	0	State employment tax	197
New spouse income	0	0	Guideln CS	0	Total taxes	4318
Employee 401-k contribution	0	0	Marin SS	4014	Federal filing status	MFJIN
Adjustments to income	0	0	Total	4014	State filing status	MFJIN
SS paid prev marriage	0	0			Wife	
CS paid prev marriage	0	0			Payment cost/benefit	4014
Health insurance	406	0			Net spendable income	5331
Other medical expenses	0	0			Federal income tax	0
Property tax expenses	0	0			Federal employment tax	0
Ded interest expense	0	0			State income tax	0
Contribution deduction	0	0			State employment tax	0
Misc tax deductions	0	0			Total taxes	0
Qualified business income deduction	0	0			Federal filing status	MFJIN
Required union dues	0	0			State filing status	MFJIN
Mandatory retirement	0	0				
Hardship deduction	0	0				
Other GDL deductions	0	0				
Child care expenses	0	0				

FC 4055 checking: ON

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 0	0	0	0 Husband	0 Husband	0 Husband